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IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA
IN AND FOR THE SIXTH APPELLATE DISTRICT

G. MITCHELL KIRK; AND CALIFORNIA RIFLE & PISTOL ASSOCIATION, INCORPORATED, PLAINTIFFS AND APPELLANTS, v. CITY OF MORGAN HILL; MORGAN HILL CHIEF OF POLICE DAVID SWING, IN SWING'S OFFICIAL CAPACITY; MORGAN HILL CITY CLERK IRMA TORREZ, IN HER OFFICIAL CAPACITY; AND DOES 1-10, DEFENDANTS AND RESPONDENTS.	Case No. H048745 Court of Appeal Case No. H048745

APPELLANTS' OPENING BRIEF

Superior Court of California, County of Santa Clara
Case No. 19CV346360
Honorable Judge Peter H. Kirwan

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INTRODUCTION

Appellants G. Mitchell Kirk and California Rifle & Pistol Association, Incorporated, allege that Respondent City of Morgan Hill adopted an ordinance that state law preempts. The challenged ordinance requires victims of firearm theft who live in, and those whose firearms are lost or stolen within, the City to report the theft or loss to the Morgan Hill Police Department within 48 *hours*. But under Proposition 63, which California voters enacted in 2016, gun owners must also report the theft or loss of a firearm to local law enforcement, but they are given *five days* to do so. In short, the City's ordinance criminalizes conduct that the voters of the state have found permissible. And it undermines the state's broad effort to create consistent and rational statewide compliance with its comprehensive theft-reporting requirements.[1]

The City has never cited a compelling reason it would need a more restrictive theft-reporting requirement. To the contrary, in the very first line of its motion for summary judgment, the City admitted that it enacted its ordinance because it wanted to adopt some particularized local need for stricter theft reporting, but a bare desire to do *something* in response to the Parkland tragedy. (A.A.I 44.) The legislative history of the City's theft-reporting ordinance includes *no* evidence that its shortened 48-hour reporting requirement will provide any local benefit beyond what state law already provides. Nor did it suggest that its law more effectively serves local interests than state law does. Instead, the City defended its ordinance by pointing to dubious claims that gun violence is a growing epidemic, that firearm theft is on the rise, and that theft-reporting requirements will somehow reduce both. But even assuming each of these broad notions were true, and assuming they justify theft-reporting requirements generally, the City *still* would not have shown that its particular requirement is valid.

Let Appellants be clear. They are not challenging theft-reporting requirements, generally. They are not even challenging California's theft-reporting requirement, specifically. They are only challenging the City's authority to pass its *own* theft-reporting requirement—a

[1] For ease of reference, throughout this brief, Kirk often refers to the reporting of firearms as stolen or lost as "firearm theft reporting" or "theft reporting."

local law at odds with state law that cannot be justified by any special local need. As explained below, the City lacks such authority. For its theft-reporting ordinance duplicates, contradicts, and enters a field implicitly occupied by state law, and is thus preempted. The Court should reverse the trial court's order granting the City's motion for summary judgment and vacate the judgment entered in the City's favor.

STATEMENT OF THE ISSUE

The doctrine of preemption bars local laws that duplicate, conflict with, or enter a field occupied by state law. State law mandates that gun owners report the theft or loss of their firearms within five days. The city of Morgan Hill recently adopted its own reporting requirement, mandating that gun owners report a firearm theft or loss within just two days. Does the state reporting requirement preempt the City's reporting requirement?

STATEMENT OF APPEALABILITY

This appeal is from the final judgment of the Superior Court of California, County of Santa Clara, entered after the trial court granted summary judgment in favor of Respondents City of Morgan Hill, Chief of Police David Swing, and City Clerk Irma Torrez (collectively, "the City"). (A.A.XI 2787.) It is expressly authorized by Code Civ. Proc., § 904.1, subd. (a)(1).

STATEMENT OF THE FACTS AND CASE

I. Factual Background

In November 2016, California voters enacted Prop 63, creating (among other things) Penal Code section 25250,[2] which reads in relevant part:

> Commencing July 1, 2017, every person shall report the loss or theft of a firearm he or she owns or possesses to a local law enforcement agency in the jurisdiction in which the theft or loss occurred within five days of the time he or she knew or reasonably should have known that the firearm had been stolen or lost.
>
> (Pen. Code, § 25250, subd. (a), double emphasis added.)

[2] Unless otherwise noted, all statutory references are to the Penal Code.

4. Any person whose firearm was stolen or lost before July 1, 2017.

(Pen. Code § 25255.)

In November 2018, some two years after voters adopted Prop 63, Morgan Hill adopted Ordinance No. 2289, amending section 9.04.030 of the Morgan Hill Municipal Code ("MHMC"). (Morgan Hill Mun. Code, § 9.04.030; A.A.I 9, 21, A.A.VI 1208, 1226-1227, 1279-1280, A.A.VII 1683, 1696.) Drawing from "model laws" championed by the Giffords Law Center to Prevent Gun Violence (formerly the Legal Community Against Violence) and the Association of [illegible], Penal Code §§ 25250, 25255, 25260, 25265, 25270, 25275.) Penal Code section 25270, for instance, lays out what must be part of a section 25250 report to law enforcement. The voter-enacted law provides guidance for those who recover a firearm previously reported lost or stolen. (Id. § 25255, subd. (b).)

> Any person who owns or possesses a firearm (as defined in Penal Code (section 16520 or as amended) shall report the theft or loss of the firearm to the Morgan Hill Police Department within forty-eight hours of the time he or she knows or reasonably should have known that the firearm had been stolen or lost, whenever: (1) the person resides in the city of Morgan Hill; or (2) the theft or loss of the firearm occurs in the city of Morgan Hill.

(Morgan Hill Mun. Code, § 9.04.030.) The local ordinance thus gives firearm owners only two days to report a firearm theft or loss to the Morgan Hill Police Department whenever the theft or loss occurs in the City or the firearm owner resides there. (Morgan Hill Mun. Code, § 9.04.030; A.A.VI 1208, 1226-1227, 1263-1264, 1266, 1293-1294, A.A.VII 1683, 1696.) Failure to comply with the City's reporting mandate is a misdemeanor punishable by imprisonment in the county jail for up to six months, a fine not to exceed $1,000, or both. (Morgan Hill Mun. Code, §§ 1.24.010, 9.04.070.) Each day a person is in violation is "regarded as a new and separate offense." (Id. §§ 1.24.010, 1.24.030.)

II. CASE BACKGROUND

A. Procedural History

While the City was considering adopting the ordinance, Appellant CRPA twice notified lawmakers of its opposition to the law, explaining that state law preempted the City's proposed 48-hour reporting requirement. (A.A.VI 1210, A.A.VII 1724-1731, 1733-

special local needs it has that outweigh the need for uniform state regulation. (Compare A.A.XI 2753-2755, with A.A.V 1190 [citing *Robins v. City of Los Angeles* (1966) 248 Cal.App.2d 1, 10 ("*Robins*") for the rule that courts must balance the needs of local governments to meet the "special needs of their communities" with the need for uniform state regulation].)

In short, the trial court ruled that the MHMC section 9.04.030 is not preempted by state law under any of the theories Kirk raised. The court thus granted the City's motion for summary judgment and denied Kirk's motion. (A.A.XI 2734.) The Court entered final judgment for the City on January 20, 2021, and Kirk's notice of appeal was deemed filed that same day. (A.A.XI 2787.)

(A.A.VI 1210, A.A.VII 1724-1733, 1753.)

I. STANDARD OF REVIEW

This appeal asks whether state law mandating that gun owners report the theft or loss of their firearms to local law enforcement preempts a local law also mandating that gun owners report the theft or loss of their firearms to local law enforcement. "Whether state law preempts a local ordinance is a pure question of law subject to de novo review" by the Court on appeal. (*Cal. Veterinary Med. Assn. v. City of W. Hollywood* (2007) 152 Cal.App.4th 536, 546, citing *City of Watsonville v. State Dept. of Health Servs.* (2005) 133 Cal.App.4th 875, 882 and *Roble Vista Assocs. v. Bacon* (2002) 97 Cal.App.4th 335, 339.)

II. THE TRIAL COURT ERRED IN GRANTING THE CITY'S MOTION FOR SUMMARY JUDGMENT, INCORRECTLY HOLDING THAT STATE LAW DOES NOT PREEMPT MHMC SECTION 9.04.030

The California Constitution commands that a county or city must take care not to fall "in conflict with general laws." (Cal. Const., art. XI, § 7.) Courts have long interpreted this as a limitation on local government's ability to interfere with the proper operation of state law through local legislation. (*Agnew v. City of Los Angeles* (1958) 51 Cal.2d 1.) In short, a local law "[i]s invalid if it attempts to impose additional requirements in a field that is preempted by the general law." (*In re Lane* (1962) 58 Cal.2d 99, 102.) In determining whether a local

misdemeanor punishable by imprisonment in the county jail for up to six months, a fine not to exceed $1,000, or both. (Morgan Hill Mun. Code, § 1.24.010, 9.04.070.) Each day a person is in violation is "regarded as a new and separate offense." (*Id.*, §§ 1.24.010, 1.24.030.)

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II. The Trial Court Erred in Granting the City's Motion for Summary Judgment, Incorrectly Holding That State Law Does Not Preempt MHMC Section 9.04.030

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measure is preempted, the Court asks if it "duplicates, contradicts, or enters an area fully occupied by general law, either expressly or by legislative implication." (*Sherwin-Williams Co. v. City of Los Angeles* (1993) 4 Cal.4th 893, 897 ("*Sherwin-Williams*").) If it does, "it is preempted by such law and is void." (*Candid Enterps., Inc. v. Grossmont Union High Sch. Dist.* (1985) 39 Cal.3d 878, 879.)

Meeting any one of these tests is enough on its own to establish preemption. But the City's theft-reporting ordinance defies the constitutional mandate that counties govern subordinate to state law (see *Sherwin-Williams*, *supra*, 4 Cal.4th at p. 898; Cal. Const., art. XI, § 7) on all three counts. The Court should thus declare Morgan Hill's law void as preempted and vacate the trial court's judgment.

A. The City's Theft-reporting Ordinance Duplicates State Law in Its Most Likely Applications

"A local ordinance *duplicates* state law when it is 'coextensive' with state law." (*O'Connell v. City of Stockton* (2007) 41 Cal.4th 1061, 1067 ("*O'Connell*"), quoting *Sherwin-Williams*, *supra*, 4 Cal.4th at p. 897.) That is, "where local legislation purport[s] to impose the same criminal prohibition that general law impose[s]," the local law duplicates state law and is void as preempted. (*In re Portnoy* (1942) 21 Cal.2d 237, 240.) "The reason that a conflict is said to exist where an ordinance duplicates state law is that a conviction under the ordinance will operate to bar prosecution under state law for the same offense." (*Cohen v. Bd. of Supervisors* (1985) 40 Cal.3d 277, 292 ("*Cohen*").) This improperly serves to frustrate the enforcement of supreme state criminal law.

MHMC section 9.04.030 requires "any person who owns or possesses a firearm" to report the theft or loss of that firearm to the Morgan Hill Police Department within 48 hours. And it applies to any person who resides in Morgan Hill and, importantly, to any firearm theft or loss of a firearm that *takes place in the City*. (Morgan Hill Mun. Code, § 9.04.030.) This duplicates state law, which also requires gun owners to report firearm theft or loss but gives them five days to make the report. (Pen. Code, § 25250, subd. (a).) MHMC section 9.04.030 thus imposes the "same criminal prohibition that general law impose[s]," (*In re Portnoy*, *supra*, 21 Cal.2d at p. 240), in that both the state law and MHMC section 9.04.030 prohibit a person from failing to report a firearm lost or stolen to local law enforcement. So

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The trial court, however, concluded that the ordinance is not duplicative of section 25250 because it is "not coextensive with state law." While the trial court may be correct that the local ordinance and state law are not identical—MHMC section 9.04.030 requires "any person who owns or possesses a firearm" to one penalizes failing to report in two days, the other in five days—the laws are duplicative enough that they raise double jeopardy concerns. For the California

[3] At least one other case has confirmed the need to prove a "special need" to regulate in the context of local gun regulation of areas already occupied by the state. (See *Fiscal*, *supra*, 158 Cal.App.4th at p. 912 ["We wish to state that the goal of any local authority wishing to legislate in the area of gun control should be to accommodate the local interest with the least possible interference with state law."].)

if someone who lives in or has their firearm stolen or lost within the City fails to report it, they will have violated *both* state law *and* local law. (See *Baldwin v. City of Tehama* (1994) 31 Cal.App.4th 166, 179-180.) In its most likely applications then, MHMC section 9.04.030 duplicates section 25250 and is thus preempted.

The trial court, however, concluded that MHMC section 9.04.040 is not duplicative of section 25250 because it is "not coextensive with state law." (A.A.I. 2744, citing *Sherwin-Williams*, *supra*, 4 Cal.4th at p. 897.) While the trial court may be correct that the local ordinance and state law are not *identical*—one penalizes failing to report in two days, the other in five days—the laws are duplicative enough that they raise double jeopardy concerns. Indeed, under relevant precedent, the three-day difference in reporting time simply does not differentiate the two laws enough to alleviate double jeopardy concerns, and, by extension, preemption by duplication. For the California Supreme Court has held that "because greater and lesser included offenses constitute the 'same offense' for double jeopardy purposes [citation], 'a conviction of a lesser included offense bars subsequent prosecution of the greater offense.'" (*People v. Seel* (2004) 34 Cal.4th 535, 542 ("*Seel*"), quoting *People v. Bright* (1996) 12 Cal.4th 652, 661.) Similarly, the United States Supreme Court has held that under the traditional (*Blockburger*) test (or the "same elements test"), double jeopardy bars:

> "[S]uccessive prosecutions for the same criminal act or transaction under two criminal statutes whenever each statute does not require[] proof of a fact which the other does not." [Citation.] "If application of that test reveals that the offenses have identical statutory elements *or that one is a lesser included offense of the other*, then the inquiry must cease, and the subsequent prosecution is barred."

(*People v. Bivens* (1991) 231 Cal.App.3d 653, 659, quoting *Grady v. Corbin* (1990) 495 U.S. 508, 516 [interpreting test from *Blockburger v. United States* (1932) 284 U.S. 299], italics added.)

Again, in the situation most likely to arise here, a Morgan Hill resident loses a firearm in the city and does not report it at all. Under those circumstances, the City's ordinance criminalizes—failing to report the loss or theft of a firearm to local law enforcement. Under section 25250, the state must show that the firearm was lost or stolen more than five days ago. To establish a violation of its law, the City need only prove that the firearm was missing for at *least* two days. And, in fact, for each day that the gun owner remains in violation—failing to report the loss or theft of a firearm to local law enforcement—he or she has committed "a new and separate offense." (Morgan Hill Mun. Code, §§ 1.24.010, 1.24.030.) This is precisely the sort of local intrusion into state affairs that preemption prohibits. (See *Cohen*, *supra*, 40 Cal.3d at p. 292.)

day that the gun owner remains in violation for failing to report she has committed "a new and separate offense." (Morgan Hill Mun. Code, §§ 1.24.010, 1.24.030.) So proving that the gun was lost for more than five days necessarily establishes the violation of *both* state law and the lesser included offense for violating city law. So if the gun owner who fails to report is charged with violating the City's ordinance, double jeopardy would attach, *barring the state's prosecution of its own laws*. (*Seel*, *supra*, 34 Cal.4th at p. 542.) This is precisely the sort of local intrusion into state affairs that preemption prohibits. (See *Cohen*, *supra*, 40 Cal.3d at p. 292.)

The trial court hypothesized a few examples of ways the laws might not raise double jeopardy and duplication concerns. (A.A.XI 2744-2745.) It referenced the resident who reports after three days (violating the ordinance but not state law), the resident who loses a gun in another city but reports only to Morgan Hill police (violating state law but not the ordinance), and the resident who loses a gun in another city but reports after four days to Morgan Hill police (violating both state law and the ordinance, but for different reasons). (*Ibid.*) It notably ignored, however, those gun owners who violate both state and local law for precisely the same reasons by failing to report altogether. (Compare A.A.XI 2743-2745, with A.A.V 1181-1182, A.A.IX 2163-2164, A.A.XI 2723-2724.) But one cannot just ignore that application of the law. It is likely the most common violation of theft-reporting mandates. And it illustrates just how the City's ordinance improperly duplicates state law, raising valid double jeopardy concerns that would frustrate the aims of Prop 63 by barring prosecution under section 25250.

For these reasons, the Court should reverse the trial court's ruling and hold that the City's theft-reporting requirement duplicates state law and is thus preempted.

Dated: August 25, 2021

MICHEL & ASSOCIATES, P.C.

s/Anna M. Barvir

Anna M. Barvir

Attorneys for Plaintiffs-Appellants

CERTIFICATE OF WORD COUNT

Under Rule 8.204, subdivision (c)(1), of the California Rules of Court, I certify that the attached Appellants' Opening Brief is 1½-spaced, typed in a proportionally spaced, 13-point font, and the brief contains 11,942 words of text, including footnotes, as counted by the word-count feature of the word-processing program used to prepare the brief.

Dated: August 25, 2021

MICHEL & ASSOCIATES, P.C.

s/Anna M. Barvir

Anna M. Barvir

Attorneys for Plaintiffs-Appellants

PROOF OF SERVICE

Case Name: *Kirk, et al. v. City of Morgan Hill, et al.*
Court of Appeal Case No.: H048745
Superior Court Case No.: 19CV346360

I, Laura Palmerin, am employed in the City of Long Beach, Los Angeles County, California. I am over the age eighteen (18) years and am not a party to the within action. My business address is 180 East Ocean Boulevard, Long Beach, California 90802.

On August 25, 2021, I served a copy of the foregoing document described as: **APPELLANTS' OPENING BRIEF**, on the following parties, as follows:

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These parties were served as follows: I served a true and correct copy by electronic transmission through TrueFiling. Said transmission was reported and completed without error.

Superior Court of California
County of Santa Clara
191 N. First Street
San Jose, CA 95113

This party was served by mail. I am "readily familiar" with the firm's practice of collection and processing correspondence for mailing. Under the practice it would be deposited with the U.S. Postal Service on that same day with postage thereon fully prepaid at Long Beach, California in the ordinary course of business. I am aware that on motion of the party served, service is presumed invalid if postal cancellation date is more than one day after date of deposit for mailing an affidavit.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on August 25, 2021, at Long Beach, California.

Laura Palmerin
Declarant